

# Seller Property Information Statement

## Residential

### Form 220

for use in the Province of Ontario

**ANSWERS MUST BE COMPLETE AND ACCURATE:** This statement is designed in part to protect Sellers by establishing that correct information concerning the property is being provided to buyers. All of the information contained herein is provided by the Sellers to the brokerage/broker/salesperson. Any person who is in receipt of and utilizes this Statement acknowledges and agrees that **the information is being provided for information purposes only and is not a warranty as to the matters recited hereinafter even if attached to an Agreement of Purchase and Sale.** The brokerage/broker/salesperson shall not be held responsible for the accuracy of any information contained herein.

**BUYERS MUST STILL MAKE THEIR OWN ENQUIRIES:** Buyers must still make their own enquiries notwithstanding the information contained on this statement. Each question and answer must be considered and where necessary, keeping in mind that the Sellers' knowledge of the property may be inaccurate or incomplete, additional information can be requested from the Sellers or from an independent source such as the municipality. Buyers can hire an independent inspector to examine the property to determine whether defects exist and to provide an estimate of the cost of repairing problems that have been identified. **This statement does not provide information on psychological stigmas that may be associated with a property.**

For the purposes of this Seller Property Information Statement, a "Seller" includes a landlord or a prospective landlord and a "buyer" includes a tenant or a prospective tenant.

|                   |                                                     |
|-------------------|-----------------------------------------------------|
| <b>PROPERTY:</b>  | <b>SELLER(S) TO INITIAL<br/>EACH APPLICABLE BOX</b> |
| <b>SELLER(S):</b> |                                                     |

| GENERAL: (Provide Applicable ADDITIONAL COMMENTS)                                                                                                                   | YES | NO | UNKNOWN | NOT APPLICABLE |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|---------|----------------|
| 1. I have occupied the property from.....to.....                                                                                                                    |     |    |         |                |
| 2. Does any other party have an ownership or spousal interest in the property?                                                                                      |     |    |         |                |
| 3. Is the property a condominium or a freehold property that includes an interest in a common elements condominium, (POTL)? (If yes, Schedule 221 to be completed.) |     |    |         |                |
| 4. Does ownership of this property require membership in an Association and payment of Association fees?<br>If yes, specify.....                                    |     |    |         |                |
| 5. Is the property subject to first right of refusal, option, lease, rental agreement or other listing?                                                             |     |    |         |                |
| 6. Are there any encroachments, registered easements, or rights-of-way?                                                                                             |     |    |         |                |
| 7. Is there a plan of survey? Date of survey.....                                                                                                                   |     |    |         |                |
| 8. Are there any disputes concerning the boundaries of the property?                                                                                                |     |    |         |                |
| 9. Are you aware of any non-compliance with zoning regulations?                                                                                                     |     |    |         |                |
| 10. Are you aware of any pending developments, projects or rezoning applications in the neighbourhood?                                                              |     |    |         |                |
| 11. Are there any public projects planned for the neighbourhood?<br>eg: road widenings, new highways, expropriations, etc.                                          |     |    |         |                |
| 12. Are there any restrictive covenants that run with the land?                                                                                                     |     |    |         |                |
| 13. Are there any drainage restrictions?                                                                                                                            |     |    |         |                |
| 14. Are there any local levies or unusual taxes being charged at the present time or contemplated?<br>If so, at what cost? ..... Expiry date.....                   |     |    |         |                |
| 15. Have you received any notice, claim, work order or deficiency notice affecting the property from any person or any public body?                                 |     |    |         |                |
| 16. (a) Is the property connected to municipal water? (If not, Schedule 222 to be completed.)                                                                       |     |    |         |                |
| (b) Is the property connected to municipal sewer? (If not, Schedule 222 to be completed.)                                                                           |     |    |         |                |
| 17. Are there any current or pending Heritage restrictions for the property or the area?                                                                            |     |    |         |                |

INITIALS OF BUYER(S):

| GENERAL (cont'd): (Provide Applicable ADDITIONAL COMMENTS)                                                                                                                                                                                                              | YES | NO | UNKNOWN | NOT APPLICABLE |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|---------|----------------|
| 18. Do you make any monthly or other payments on any conditional sales contracts, leases, rental agreements or service contracts? eg: furnace, alarm system, hot water tank, propane tank, etc.<br>Specify.....<br>Are they assignable or will they be discharged?..... |     |    |         |                |
| 19. Are there any defects in any appliances or equipment included with the property?                                                                                                                                                                                    |     |    |         |                |
| 20. Do you know the approximate age of the building(s)? Age.....<br>Any additions: Age.....                                                                                                                                                                             |     |    |         |                |
| 21. Are you aware of any past or pending claims under the Taron Warranty Corporation (formerly ONHWP)? Taron Warranty Corporation/ONHWP Registration No.....                                                                                                            |     |    |         |                |
| 22. Will the sale of this property be subject to HST?                                                                                                                                                                                                                   |     |    |         |                |

**ADDITIONAL COMMENTS:** .....

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| ENVIRONMENTAL: (Provide Applicable ADDITIONAL COMMENTS)                                                                                                                                                                                                      | YES | NO | UNKNOWN | NOT APPLICABLE |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|---------|----------------|
| 1. Are you aware of possible environmental problems or soil contamination of any kind on the property or in the immediate area? eg: radon gas, toxic waste, underground gasoline or fuel tanks, etc.                                                         |     |    |         |                |
| 2. Are there any existing or proposed waste dumps, disposal sites or land fills in the immediate area?                                                                                                                                                       |     |    |         |                |
| 3. Are there any hydro generating projects planned for the immediate area? eg: Wind Turbines                                                                                                                                                                 |     |    |         |                |
| 4. Is the property subject to flooding?                                                                                                                                                                                                                      |     |    |         |                |
| 5. Is the property under the jurisdiction of any Conservation Authority or Commission?                                                                                                                                                                       |     |    |         |                |
| 6. Are you aware of any excessive erosion, settling, slippage, sliding or other soil problems?                                                                                                                                                               |     |    |         |                |
| 7. Does the property have any abandoned or de-commissioned <input type="checkbox"/> well <input type="checkbox"/> septic system<br><input type="checkbox"/> swimming pool <input type="checkbox"/> foundation <input type="checkbox"/> other, specify.....   |     |    |         |                |
| 8. (a) Is there a fuel oil tank on the property? If yes, complete the following:<br><input type="checkbox"/> Underground. Date for required upgrading or removal.....<br><input type="checkbox"/> Aboveground. Age of tank..... Date of last inspection..... |     |    |         |                |
| (b) Does the fuel oil tank comply with the Technical Standards and Safety Authority requirements and any other requirements for fuel to be delivered?                                                                                                        |     |    |         |                |
| 9. Has the use of the property ever been for the growth or manufacture of illegal substances?                                                                                                                                                                |     |    |         |                |

**ADDITIONAL COMMENTS:** .....

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**INITIALS OF BUYER(S):**



| IMPROVEMENTS AND STRUCTURAL: (Provide Applicable ADDITIONAL COMMENTS)                                                                                             | YES | NO | UNKNOWN | NOT APPLICABLE |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|---------|----------------|
| 1. Are you aware of any structural problems?                                                                                                                      |     |    |         |                |
| 2. (a) Have you made any renovations, additions or improvements to the property?                                                                                  |     |    |         |                |
| (b) Was a building permit obtained?                                                                                                                               |     |    |         |                |
| (c) Has the final building inspection been approved or has a final occupancy permit been obtained?                                                                |     |    |         |                |
| 3. To the best of your knowledge have the building(s) ever contained urea formaldehyde insulation?                                                                |     |    |         |                |
| 4. Is there vermiculite insulation on the property?<br>If yes, has it been tested for asbestos?.....                                                              |     |    |         |                |
| 5. (a) Are you aware of any deficiencies or non-compliance with the Ontario Fire Code?                                                                            |     |    |         |                |
| (b) Is your property equipped with operational smoke detectors?                                                                                                   |     |    |         |                |
| (c) Is the property equipped with operational carbon monoxide detectors?                                                                                          |     |    |         |                |
| 6. (a) Is the woodstove(s)/chimney(s)/fireplace(s)/insert(s) in good working order?                                                                               |     |    |         |                |
| (b) Has the wood energy system been <b>WETT</b> inspected? (Wood Energy Technology Transfer)                                                                      |     |    |         |                |
| 7. Are you aware of any problems with the central air conditioning system?                                                                                        |     |    |         |                |
| 8. Are you aware of any problems with the heating system?                                                                                                         |     |    |         |                |
| 9. (a) Are you aware of any moisture and/or water problems?                                                                                                       |     |    |         |                |
| (b) Are you aware of any roof leakage or unrepaired damage?<br>Age of roof covering .....                                                                         |     |    |         |                |
| (c) Are you aware of any damage due to wind, fire, flood, insects, termites, rodents, pets or wood rot?                                                           |     |    |         |                |
| (d) Have any repairs been carried out to correct any past or present problems related to (a), (b) and/or (c)?<br>If yes, explain in additional comments below.    |     |    |         |                |
| 10. (a) Are you aware of any problems with the electrical system? Size of service.....                                                                            |     |    |         |                |
| (b) Type of wiring: <input type="checkbox"/> copper <input type="checkbox"/> aluminium <input type="checkbox"/> knob-and-tube <input type="checkbox"/> other..... |     |    |         |                |
| 11. Are you aware of any problems with the plumbing system?                                                                                                       |     |    |         |                |
| 12. Is there any lead, galvanized metal, cast iron or Kitec plumbing on the property?                                                                             |     |    |         |                |
| 13. Are you aware of any problems with the swimming pool, sauna, hot tub, jet bathtub or lawn sprinkler system?                                                   |     |    |         |                |

**ADDITIONAL COMMENTS:** .....

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**Schedule(s)** attached hereto and forming part of this Statement include:.....

**The Sellers state that the above information is true, based on their current actual knowledge as of the date below. Any important changes to this information known to the Sellers will be disclosed by the Sellers prior to closing. Sellers are responsible for the accuracy of all answers. Sellers further agree to indemnify and hold the Brokerage/Broker/Salesperson harmless from any liability incurred as a result of any buyer relying on this information. The Sellers hereby authorize the Brokerage to post a copy of this Seller Property Information Statement into the database(s) of the appropriate MLS® System and that a copy of this Seller Property Information Statement be delivered by their agent or representative to prospective buyers or their agents or representatives. The Sellers hereby acknowledge receipt of a true copy of this statement.**

..... (Signature of Seller) ..... (Date) ..... (Signature of Seller) ..... (Date)

**I acknowledge that the information provided herein is not warranted and hereby acknowledge receipt of a copy of the above information including any applicable Schedule(s).**

..... (Signature of Buyer) ..... (Date)

..... (Signature of Buyer) ..... (Date)